TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
MARCH 28, 2022
MINUTES

STAFF REPORT

Present: Stephen Wood, Chair, Aaron Butner, Elliott Barrow, Giles Branch, Julian Hopkins, Meghan Stevens, Stephen Dukes
Staff: Christopher Swalhah, Michael Robertson, Mac Deford, Jane Yager-Baumrind

Mr. Wood called the meeting called to order at 6pm.

A. Approval of Agenda

- *Mr. Stephen Wood moved to approve the agenda. Mr. Hopkins seconded the motion. All in favor.*

B. Approval of Minutes

- *Mr. Stephen Wood moved to approve the agenda. Mr. Hopkins seconded the motion. All in favor.*

C. Public Comment

- There being no public comment, Mr. Wood continued with the agenda.

D. General Correspondence

All correspondence received was linked to the agenda and distributed to the Board.

E. Explanation of Procedures

- Mr. Wood reviewed the procedures with the public.

F. Administration of Oath

- Mr. Wood administered the oath to those speaking.

G. Business

1. Case V-06-2022, 1454 Seminole Street, TMS#5321000097. Request for relief from the strict application of §156.111(A)(5) to allow an accessory structure height of 22 feet 1 and ¼ inches. The ordinance limits the height of accessory structures to 15 feet or 18 feet if it meets certain conditions.

- Mr. Swalhah reviewed the agenda item to the Board.

- Mr. Christopher Ercoli, owner, reviewed the request with the Board.

- Mr. Wood asked that the correspondence be read into the record. Mr. Swalhah read the correspondence into the record.

- There being no comments Mr. Wood closed public comment.

- *Mr. Barrow moved for denial of the request as the four criteria required to grant a variance have not been satisfied as there are no extraordinary conditions and denial would not unreasonably restrict the use of the property. Mr. Duke seconded the motion. All in favor.*

2. Case V-07-2022, 753 McCants Drive, TMS#5321000159. Request for relief from the strict application of §156.076(B)(Table 1) to allow for an allocation of a building permit for an accessory dwelling unit. The ordinance limits the allocation of accessory dwelling unit building permits to 20 per year.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Wood administered the oath to Ms. Mau.

- Ms. Jacqueline Mau, owner, reviewed the request with the Board.

- Mr. Ron Denton, architect, stated that the request is essentially asking to "borrow" a permit from the subsequent allocation period so that the project can be accelerated for the health and welfare of the family member.

- Mr. Wood asked staff to read the correspondence into the record. Ms. Swalhah read correspondence into record.

- Mr. Wood closed public comment.

- *Ms. Stevens moved for denial based on the findings that the four criteria required to grant a variance has not been met. Mr. Hopkins seconded the motion. All in favor.*

3. Case V-08-2022, 1108 Graddick Road, TMS# 5590000176. Request for relief from the strict application of §156.227(B)(4) to allow an access driveway to be constructed within a tree protection zone. The ordinance prohibits any subgrade building elements from being constructed within a tree protection zone.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Evan Williams, representative for applicant, reviewed the request with the Board.

- Mr. Alex Zen, 1443 Penshell Place, stated that he is one of the principals of the LLC. He stated that they have worked with attorneys and architects to adjust the design to best fit on the site.

- There being no further comments, Mr. Wood closed public comment.

- *Mr. Branch moved for approval based on the findings that the trees dictate the location of the drive and meets all requirements for a variance with the condition that a certified arborist treat the tree prior to construction and approved by staff. Mr. Butner seconded the motion.*

- *Ms. Stevens moved to amend the motion to include the condition that the conceptual plan is approved by the staff Design Review Team and Design Review Board. Mr. Hopkins seconded the amendment.*

- *Mr. Hopkins moved to amend the motion to have approval of entrance and egress location approved by SCDOT. Ms. Stevens seconded the motion.*

- *Mr. Hopkins withdrew his amendment. Ms. Stevens withdrew her second.*

Mr. Wood called for a vote on the amendment. Motion passed on a 5 to 2 vote with Mr. Butner, Mr. Branch, Ms. Stevens, Mr. Hopkins, and Mr. Duke in favor; Mr. Barrow and Mr. Wood opposed.

- *Mr. Wood called for a vote on the amended motion. Motion passed on a 4 to 3 vote with Mr. Butner, Mr. Branch, Ms. Stevens, and Mr. Dukes in favor; Mr. Barrow, Mr. Hopkins, and Mr. Wood opposed.*

H. Approval of Final Order

The Board signed final orders.

There being no further business, the meeting adjourned at 7:11 pm.

Submitted by,
L. Lynes
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